

The law starts from the basic tenet that an individual is accountable for wrongful conduct. Westfall v. Erwin, 108 S.Ct. 580, 583 (1988). This applies to all individuals in government-executive or judicial. Furthermore, the privilege is not bestowed automatically. One asserting it has the BURDEN OF PROVING ENTITLEMENT. Westfall, at 585. It is not available in all situations. Where an actor knows he lacks jurisdiction to act he should be made to hesitate. Case of the Marshalsea, *infra*. Where he knows his actions will violate basic constitutional rights he should be made to hesitate. Mitchell v. Forsyth, *infra*. Where he can be expected to know that his conduct will violate clearly established law he should be made to hesitate. Harlowe v. Fitzgerald, 457 U.S. 818, 819 (1982). As was specifically set forth in Mitchell v. Forsyth, 86 L.Ed. 411, 425:

"Unless the plaintiff's allegations state a claim of violation of clearly established law, a defendant pleading qualified immunity is entitled to dismissal before the commencement of discovery. (citation) Even if the plaintiff's complaint adequately alleges the commission of acts that violated clearly established law, the defendant is entitled to summary judgment if discovery fails to uncover evidence sufficient to create a genuine issue as to whether the defendant in fact committed those acts."

In Westfall v. Ervin, *infra*. the Supreme Court found that there was a GENUINE ISSUE OF MATERIAL FACT as to whether conduct was entitled to absolute immunity. In the context of judicial liability under the Fourteenth Amendment and Section 1983, allegations of no subject matter jurisdiction and of violations of clearly established Constitutional rights likewise define genuine issues of material fact. As was observed in Gomez v.